

Evaluating legal frameworks
to combat the rapid increase
of domestic abuse with special
regards to femicides

I. Introduction

***“Everyone has the human right to live in safety and free from violence and abuse.
Society has a duty to recognise and defend this right.”***

-Women's Aid

Domestic abuse, also called "domestic violence" can be defined as a pattern of behavior in any relationship that is used to gain or maintain power and control over an intimate partner. Abuse in nature can be physical, sexual, emotional, economical or psychological. It transcribes actions or threats that influence another person by frightening, intimidating, terrorizing, manipulating, hurting, humiliating, blaming, injuring, or wounding someone. Domestic abuse can occur within a range of relationships including couples who are married, living together or dating. Domestic violence affects people of all socioeconomic backgrounds and education levels.

Anyone can be a victim of domestic violence, regardless of age, race, gender, sexual orientation, faith or class

Women are more likely than men to experience multiple incidents of abuse, different types of domestic abuse (intimate partner violence, sexual assault and stalking) and in particular sexual violence. Some women who experience other forms of oppression and discrimination which can affect their experiences of abuse and may face further barriers to disclosing abuse and finding help.

The impact of domestic abuse has proven to be devastating to the victim, manifesting in emotional harm such as loss of confidence and low self esteem, isolation from family, friends and community, long term social difficulties, negative effect on work and possible loss of independent income, distorted sense of reality, substance misuse, self-harm and even suicide.

Almost one in three women (30%) globally have been subjected to some form of domestic abuse. More so, approximately 60% of all female intentional homicide victims worldwide are killed by intimate partners or family members. In 2024, it was estimated that around 50,000 women and girls were killed by their intimate partners or family members, averaging 137 victims every day.



Power and Control Wheel, as provided by the UN

II. Definition of Key Terms

Femicides

Femicide (or feminicide, as it is referred to in some contexts) is defined as an intentional killing with a gender-related motivation. It is different from homicide, where the

motivation may not be gender-related. Feminist sociologist Diana Russell first used the term “femicide” in her testimony about misogynist murder before the 1976 International Tribunal on Crimes against Women.

Dowery

An amount of property or money brought by a bride to her husband on their marriage. It can take the form of land, property, money, livestock, or a commercial asset that is paid by the bride's family to the groom or his family at the time of marriage.

Apartheid

The Apartheid (1948 to 1994) in South Africa was the racial segregation under the all-white government of South Africa which dictated that non-white South Africans (a majority of the population) were required to live in separate areas from whites and use separate public facilities, and contact between the two groups would be limited. The different racial groups were physically separated according to their location, public facilities and social life.

III. Background Information

Domestic abuse/violence is a very broad term that manifests as acts of coercion, manipulation, threats, often starting off as passive acts that might be overlooked, later advancing and developing into physically or mentally harmful behaviors. In some cases, the violent nature can go as far as choking, beating, stalking, female genital mutilation, acid throwing, disfigurement and even death. In some countries, domestic violence may be seen as justified or legally permitted, particularly in cases of actual or suspected infidelity.

Causes & Effects

The motivations behind domestic abuse are varied and complex. The overriding drive behind this violent behavior is the dynamic of power and control in a relationship. Violence is seen as a method of dominating the power structure within a relationship, regardless of whether the relationship is romantic, parental, or familial.

Education, be it at home or through external influences, inherently forms a child's way of thinking and can cause or reinforce misogyny through systemic biases, stereotypical portrayals, normalizing sexist language.

Online Influence is a primary driver of modern misogyny, with influencers delivering jokes meant to desensitize viewers and making extremist ideas feel like normal entertainment. Influencers mainly appeal to male viewers by addressing their real-world insecurities such as loneliness, lack of direction, or academic struggles and offering simplistic, "masculine" solutions.

Governments and legal systems can and sometimes do create the conditions for domestic abuse and even femicide to go unpunished through institutional neglect. Globally, the conviction rate for violence against women and femicides remains at a low. When perpetrators see that there are no consequences, the cycle of violence escalates. Furthermore, legal frameworks that don't enforce equal pay keep women in a state of financial dependency, which is a primary reason why domestic abuse persists over years.

Domestic violence is associated with a range of physical and mental health effects, some of the most important including:

Health conditions associated with abuse include asthma, bladder and kidney infections, cardiovascular disease, fibromyalgia, chronic pain syndromes and much more. Domestic abuse often leaves victims with reproductive consequences too, including pre-term and pregnancy difficulties. A study shows that 1 in 5 high-risk victims reported requiring hospital care as a result of their injuries in the year before getting effective help. Fifty percent of women seen in emergency departments report a history of abuse, and approximately 40% of those killed by their abuser sought help in the 2 years before death.

Psychological trauma is a common denominator in victims of abuse at the hands of a person close to them, frequently suffering of clinical depression, high anxiety, posttraumatic stress disorder (PTSD) and even suicidal tendencies.

Children exposed to domestic abuse throughout their childhood are victims themselves. They are often neglected and lack the support they need from their parents, can end up hurt as a result of trying to intervene, and sometimes even being forced out of or

losing their home. 90% are direct eyewitnesses to the abuse and 30% to 60% of the time suffer violence at the hands of the abuser themselves.

Fatal & Nonfatal Violence

Nonfatal violence refers to acts intended to control, punish, or harm that do not result in death but cause significant physical and psychological damage. Violence that culminates in fatality is the most drastic form of abuse. Most fatalities are women, 56% of female homicides being committed by family or partners, compared to 11% for men. A femicide is the absolute manifestation of misogyny and gender-based violence.

Blunt force trauma is the most frequent method of assault, mainly kicking and punching. Head and neck injuries are also specific, most often resulting in fractures. In some incidents, perpetrators may even use firearms or other weaponry to scare or intimidate the victim into submission. Stabbing is the most common way victims have lost their lives.

Acid attacks are a form of premeditated violence where acid is thrown onto the body or the face to disfigure, maim, or blind the victim. This is often a form of punishment for rejecting a marriage proposal or sexual advances. These attacks are particularly common in South Asia.

Female genital mutilation involves the partial or total removal of external female genitalia for non-medical reasons. It is recognized internationally as a **violation of the human rights** of girls and women. Statistics show that over 230 million girls and women alive today have undergone such operations.

Dowry deaths & bride burning most often occur in South Asian countries, and are defined as murders of married women by their husband or his family over disputes regarding dowry. Sometimes the woman is killed by being set on fire by her husband or in-laws; this is known as "bride burning", and is sometimes disguised as a suicide or a kitchen accident. Homicides also occur through poisoning, hanging, strangulation, or drowning.

IV. Major Countries and Organizations Involved

Mexico

Mexico has one of the world's highest femicide rates, with approximately 1,000 femicides, out of 34,000 total murder victims. Femicide in Mexico is rooted in the "machismo culture" that views women as subordinates. The situation has only worsened as

these beliefs have affected views of feared organized crime groups. An escalation of violence began in the early 1990s, and was followed by a wave of sexual violence and torture, abductions, and increasing rates of women being murdered because of their gender. A key characteristic is the brutal, public nature of the killings, often involving sexual mutilation or public display of the body to send a message.

While official numbers showed a slight decrease in 2024, the public perception is that the crisis is worsening due to possible unreported and uninvestigated cases. Notably, native women, who make up 15% of the population, are at a higher risk of gender-based violence like femicide due to economic marginalization and limited access to health and government protections. Currently, the government and authorities are taking little action to combat or stop these acts of cruelty. As a result, only 2% of cases end in a criminal sentence for the aggressor.

There have been many small feminist movements that have attempted to bring attention to the level of violence Mexican women face. Non-profit associations are being supported by women, academics, feminists, and civil society, they are the ones “who must go, protest and raise their voices to be taken into account”. As women gained more political influence nationally, the government introduced reforms to combat gender based violence and remediate inequality. Key initiatives included mandating a "gender perspective" within security and investigative bodies and establishing specialized prosecutors for crimes against women. Additionally, the National Commission to Prevent and Eradicate Violence Against Women (CONAVIM) expanded victim support by launching 73 justice centers across 31 states.

Afghanistan

Afghanistan represents a unique and extreme case where the state has actively dismantled the legal protections for women since 2021. The Taliban has abolished the Elimination of Violence Against Women (EVAW) Law and closed shelters. Forced marriages and honor killings are on the rise, and women have lost faith in all legal assistance, as the justice system is now entirely male-controlled. The true scale of fatalities and violence faced by Afghan women is likely far greater than official reports suggest. According to Afghan Witness project director David Osborn, the Taliban shutting down most independent press, combined with the harassment of reporters and online threats, has

created a massive reporting gap that masks the severity of the crisis. UN Women recently ranked Afghanistan's gender crisis as the most severe in the world, essentially labeling the situation as "gender apartheid".

In response to the oppressive abuses of the Taliban, some women have continued to resist these forces, starting a series of street protests in major cities. It is believed that most protests and demonstrations are now being held online in order to protect the locations and identities of attendees. Furthermore, external international organizations continue to monitor the situation through the UN Special Rapporteur on Afghanistan and provide remote mental health support for victims in a worsening humanitarian crisis. Still, the lack of laws defending Afghan women and their rights, as well as a male centered government led by misogyny forms one of, if not the worst cases of institutionalized abuses of today.

South Africa

South Africa has one of the highest rates of femicide in the world, with a rate nearly five times the global average, with statistics indicating that around 15 women are murdered every day. Studies show that Southern African women are the most vulnerable when it comes to economic status, having higher unemployment rates as well as higher levels of poverty.

The high rates of femicide in South Africa cannot be understood without examining the country's history of institutionalized violence. Decades of Apartheid created a society where violence was normalized as a tool of political and social control. These views have now integrated into domestic lives, who view violence as nothing less than a culture. As a result, most fatalities are victims who are murdered in their own homes by men they know, be it husbands, boyfriends, or ex-partners, after restricting their victim's financially or socially.

Organizations such as "Women for Change" or "Southern African Women in Dialogue" have committed to fighting for and improving the status of women. In autumn of 2025 a series of public protests urged women across numerous cities to lie down for 15 minutes in honor of the estimated 15 women who are murdered in the country every day. Responding to the protests and to over one million petition signatures, the Government has declared gender-based violence and femicide a national disaster.

South Africa possesses one of the most advanced legal frameworks in the world. The Domestic Violence Act and the more recent Criminal Law (Sexual Offences and Related

Matters) Amendment Act were conspired as an effort to help victims. These laws have expanded the definition of abuse to include emotional and economic harm and have streamlined the process for obtaining protection orders. However, with the police force being frequently criticized for being under-resourced, the conviction rate remains low despite how strong the law may be.



Southern African “lie downs”

V. Timeline of Events

Date	Description of events
1848	Seneca Falls Convention, New York. The first major feminist change pushing for women's right to vote and other legal reforms, a plea for the end of discrimination against women in all spheres of society.
1972	The first modern women’s shelter opens in the UK, sparking a global movement for "safe houses."

1975	The UN holds the First World Conference on Women in Mexico City, putting "violence against women" on the international diplomatic agenda for the first time.
1994	The Belém do Pará Convention becomes the first treaty to define violence against women as a human rights violation.
7 August - 2006	Named after Brazilian activist, Maria da Penha, the Lei Maria da Penha Law was an essential contribution to the criminalization of aggressions towards women,
11 May 2011	The Istanbul Convention is opened for signature, creating the strictest legal framework for preventing domestic violence in Europe.
1 August 2014	In 2008 the Council of Europe set up a committee to prevent and combat violence against women, named CAHVIO. It opened for signatures on the 11 th of May 2011 and entered into force on the 1st of August 2014.
2021-2023	The Taliban imposed new strict rules against women regarding education, clothing and so on, prohibiting them from working most jobs. Turkey's withdrawal from the Istanbul Convention. The sign of a global pushback on the feminist movement.

VI. Relevant UN Treaties and Events

- **UN Women Resolution 1325 (2000) (S/RES/1325)**
- **UN Women Resolution 2122 (2013) (S/RES/2122)**
- **UN Women Resolution 2493 (2019) (R/RES/2493)**
- **General Assembly United Nations action on sexual exploitation and abuse (2018) (A/RES/72/312)**
- **Convention on the Elimination of All forms of Discrimination Against Women**

- *an international bill of rights mandating legal equality, political participation, education, employment and family laws*

VII. Previous Attempts to Solve the Issues

- **Prioritizing femicide as a political issue**

Increasing the level of awareness being spread, the concept of femicide being clearly adopted in official documents, and implementing awareness-raising campaigns, educating about the required specific measures to combat and prevent femicide.

- **Adopting laws and conventions**

Initiatives and equality processes such as conventions and other laws have been adopted internationally in hopes of preventing violence and protecting victims by prosecuting offenders and introducing restraining orders.

- **Introducing monitoring programs**

Many NGOs make efforts into monitoring data and collecting valuable information that may help identify patterns, such as the fact that most women reported abuse to the police prior to their death, therefore underlying root problems.

- **Creating safe spaces for women**

A few programs have been implemented to help women physically and mentally through the battles fought after being subjected to abuse or violence, most of them being free. Similarly, shelters have been found to be helpful to women in need, offering them, food, medical care, clothes, and a safe place to sleep free of charge.

- **Promoting awareness campaigns**

Using social media to spread awareness about the early signs of domestic abuse as well as promoting the idea of reaching out for help by contacting hot lines are a great way of influencing women to identify and stop abuse.

VIII. Possible Solutions

- **Improving existent forces**

Investing in training people into topics regarding gender crimes in order to improve the current situation of the undermanned special forces such as special police forces.

- **Removing misogynistic concepts**

Modernizing laws to remove outdated concepts like "marital duty" or "crimes of passion" that excuse or diminish the severity of violence against women. Sharing ideas that are empowering and freeing beyond the European and American borders.

- **Addressing economic injustices**

The gap between pay can often make women feel reliant on men financially and is often a conflict that escalates into cases of abuse and/or violence. Equal pay worldwide would diminish the issue.

- **Introducing education programs in schools**

Essential programs in primary and secondary schools that teach healthy relationship skills, consent, and mutual respect should be introduced, in order to encourage boys from young ages to call each other out on misogynistic behavior instead of praising it.

- **Investing in technologies**

Implementing programs that don't allow the offender to interact with the victim online, electronic tags for offenders, and emergency panic buttons for women at high risk. Providing 24/7 support through encrypted messaging for victims who cannot safely make a phone call. Another idea would be creating encrypted platforms to allow victims to document abuse (photos, texts, voice notes) in a secret vault that is admissible in court and inaccessible to the abuser.

Questions delegates should consider during Research

- What is the delegation's country viewpoint?
- How is my delegation's country involved in or affected by domestic violence?
- Does my delegation's country have a history with domestic violence/femicides?
- What can my delegation's country provide for tackling the issue?
- How frequent are such incidents in my delegation's country?

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